Separating Official Requirements From Online Myth

The information gap facing refugee claimants in Canada

By Anuj Dhawan | Draft prepared 27 October 2026

People looking for information about a refugee claim may hear from government pages, settlement organizations, relatives, social media, and private service providers. Some guidance is accurate but old. Some describes a different point in the process. Other accounts turn one person's experience into a rule for everyone. The result is an information gap: claimants can find many answers and still struggle to tell which instruction applies to their route and situation.

Canada's process has distinct entry points. People who make a claim at a port of entry speak first with the Canada Border Services Agency (CBSA); people who make a claim after entering Canada follow Immigration, Refugees and Citizenship Canada's (IRCC) current instructions for an in-Canada claim. IRCC or CBSA assesses whether a claim can be referred to the Refugee Protection Division (RPD) of the Immigration and Refugee Board of Canada (IRB). The RPD decides whether the claimant meets Canada's refugee protection criteria. The IRB's guide to making a refugee claim describes different steps for claims at a port of entry and claims made from within Canada. The IRCC asylum page provides current instructions for in-Canada claims.

Eligibility Is Not the Final Decision

One common confusion is treating an eligibility decision as a decision that a person qualifies for protection. Eligibility screening determines whether the claim can go forward to the IRB; it does not decide the underlying claim. That later decision belongs to the RPD. Conflating the stages can lead a reader to misinterpret a notice or assume the process is finished when further steps remain. Public explanations should use the agencies' terms and state what a particular decision means.

The Route Changes What Guidance Applies

Advice that is right for a person who claimed at a border may not describe the steps for someone who makes a claim after arriving in Canada. Portal instructions, forms, and deadlines can also change. On 27 October 2026, IRCC's in-Canada page announced changes to its online process beginning on 3 November. A saved guide or older checklist may not reflect a new instruction. Claimants should open the relevant live government page and check its update information before acting. When a deadline or instruction is unclear, they can contact the responsible agency or ask a qualified representative.

Online information can lose its route, date, or source as it moves. A screenshot may circulate without its page title; an old checklist may continue to appear in search; and a truthful account of one person's experience may not fit another claimant's route. The practical question is whether a piece of guidance tells readers which stage and agency it covers, when it was updated, and where to confirm the instruction.

Representation Can Help but Does Not Guarantee a Result

The Government of Canada says refugee claimants have the right to be represented by counsel at their own expense and may apply for provincial or territorial legal aid. It also says the government treats claimants equally whether or not they use counsel; hiring a representative does not give a claim special attention. The IRB encourages claimants to get professional help with the Basis of Claim form. These points fit together: a representative can help someone understand the process and prepare documents, while the IRB decides the claim under the law and on the evidence. The government's information for refugee claimants explains the right to counsel and the treatment of represented claimants. The Department of Justice lists provincial and territorial legal aid services.

Make the Next Step Easier to Confirm

Public agencies and community organizations can make guidance easier to use by putting the route, agency, and update date near the top of each page. A useful explanation distinguishes a claim made at a port of entry from an in-Canada claim, identifies whether it gives general information or case-specific advice, and links to the current form or process. When a rule changes, a dated notice can explain which instructions changed and where a reader should go next.

Readers can also ask four quick questions before relying on online guidance:

- Which stage of the process am I at?
- Which agency issued this information, and when was it updated?
- Does it apply to a claim made at a port of entry or to one made from within Canada?
- Which official page confirms the next step?

People seeking protection should not have to solve a source-tracking puzzle while managing a serious process. A clear route map, a plain-language explanation of eligibility and the IRB hearing, and direct links to official instructions can help claimants identify the next step and prepare better questions for legal aid or counsel. Public information cannot decide an individual claim, but it can make the rules easier to verify and use.

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